

The Inter-State Migrant Workmen (Regulation Of Employment And Conditions Of Service) Central Rules, 1980

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The Inter-State Migrant Workmen (Regulation Of Employment And Conditions Of Service) Central Rules, 1980

UNION OF INDIA

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The Inter-State Migrant Workmen (Regulation Of Employment And Conditions Of Service) Central Rules, 1980

Rule

THE-INTER-STATE-MIGRANT-WORKMEN-REGULATION-OF-EMPLOYMENT-AND-CONDITIONS-OF-SERVICE-CENTRAL-RULES-1980 of 1980

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The Inter-State Migrant Workmen (Regulation Of Employment And Conditions Of Service) Central Rules, 1980

Published vide Notification Gazette of India, Extraordinary, Part 2, Section 3(i), dated 11th August, 1980 (w.e.f. 2nd October, 1980).

14.

/688

G.S.R. 514(E), dated 11th August, 1980. - In exercise of the powers conferred by section 35 of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979 (

30 of 1979

), the Central Government hereby makes the following rules, namely:-

Chapter I

1.

Short title and commencement.-

(1)

These rules may be called The Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Central Rules, 1980.

(2)

They shall come into force from the second day of October, 1980.

2.

Definitions.

-In these rules, unless the subject or context otherwise requires,-

(a)

"Act" means the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979;

(b)

"Appellate Officer" means an appellate officer nominated by the Central Government under section 11;

(c)

"Deputy Chief Labour Commissioner (Central)" means an officer as such appointed by the Central Government;

(d)

"Form" means a form appended to these rules;

(e)

"Inspector" means an Inspector appointed by the Central Government under section 20;

(f)

"licensing officer" means the licensing officer appointed by the Central Government under section 7;

(g)

"migrant workman" means an inter-State migrant workman as defined in section 2;

(h)

"registering officer" means a registering officer appointed by the Central Government under section 3;

(i)

"section" means a section of the Act;

(j)

"specified authority" means the authority specified by the Central Government for the purposes of sections 12 and 16; and

(k)

all other words and expressions used in these rules but not defined therein shall have the meanings respectively assigned to them in the Act.

Chapter II

3.

Manner of making application for registration of establishments.-

(1)

The application for registration of an establishment shall be made in triplicate in Form I to the registering officer of the area in which the establishment sought to be registered is located.

(2)

The application shall be accompanied by a crossed demand draft showing payment of the fees for the registration of the establishment.

(3)

The application shall be either personally delivered to the registering officer or sent to him by registered post.

(4)

On receipt of the application, the registering officer shall, after noting thereon the date of receipt by him of the application, give an acknowledgment to the applicant.

4.

Issue of certificate of registration.-

(1)

Where the registering officer registers of establishment, he shall issue to the principal employer a certificate of registration in Form II.

(2)

The registering officer shall maintain a register, in Form III showing the particulars of the establishments, in relation to which certificates of registration are issued by him.

(3)

If, in relation to an establishment, there is any change in the particulars specified in the certificate of registration, the principal employer of the establishment shall intimate to the registration officer, within thirty days from the date when such change takes place, the particulars of, and the reasons for, such change.

5.

Circumstances in which applicants for registration may be rejected.-

(1)

If any application for registration is not complete in all respects, the registering officer shall require the principal employer to amend the application so as to make it complete in all respects.

(2)

If the principal employer, on being required by the registering officer to amend his application for registration omits or fails to do so, the registering officer shall reject the application for registration.

6.

Amendment of certificate of registration.-

(1)

Where on receipt of the intimation under sub-rule (3) of rule 4, the registering officer is satisfied that an amount higher than the amount, which has been paid by the principal employer as fees for the registration of the establishment is payable, he shall require such principal employer to deposit a sum which, together with the amount already paid by such principal employer, would be equal to such higher amount of fees payable for the registration of the establishment and to produce receipt showing such deposit.

(2)

Where, on receipt of the intimation referred to in [sub-rule (3)]

[Substituted by G.S.R. 53(E), dated 4.2.1984.]

of rule 4, the registering officer, is satisfied that there has occurred a change in the particulars of the establishment, as entered in the register in Form III, he shall amend the said register and record therein the change thus occurred:

Provided that no such amendment shall affect anything done or any action taken or any right, obligation or liability acquired or incurred before such amendment:

Provided further that the registering officer shall not carry out any amendment in the register in Form III unless the appropriate fees have been deposited by the principal employer.

7.

Application for a license.-

(1)

Every application by a contractor for the grant of a license for recruiting a person under clause (a) of sub-section (1) of section 8 shall be made in triplicate in Form IV to the licensing officer having jurisdiction in relation to the area wherein recruitment is made.

(2)

Every application by a contractor for employing a migrant workman under clause (b) of sub-section (1) of section 8 shall be made, in Form V to the licensing officer having jurisdiction in relation to the area wherein the establishment is situated.

(3)

(i)

Every application for the grant of a license under sub-rule (1) or sub-rule (2) shall be accompanied by a certificate of the principal employer in Form VI to the effect that he undertakes to be bound by all the provisions of the Act and the rules

made thereunder so far as they are applicable to him in respect of the recruitment or employment of the migrant workmen, in respect of which the contractor is making the application.

(ii)

Every such application shall be either personally delivered to the licensing officer concerned or sent to him by registered post.

(4)

On receipt of the application referred to in sub-rule (1) or sub-rule (2), the licensing officer concerned shall, after noting thereon the date of receipt of the application, grant an acknowledgment to the applicant.

(5)

Every application referred to in sub-rule (1) shall also be accompanied by the receipt obtained as required by rule 20.

8.

Matters to be taken into account in granting or refusing a license.-

In granting or refusing to grant a license the licensing officer shall take the following matters into account, namely:-

(a)

Whether the, applicant-

(i)

is a minor, or

(ii)

is a unsound mind and stands so declared by a competent Court, or

(iii)

is an undischarged insolvent, or

(iv)

has been convicted at any time during the period of five years immediately preceding the date of application, of an offence which, in the opinion of the Central Government, involves moral turpitude;

(b)

whether any order had been made in respect of the applicant under sub-section (1) of section 10, and if so, whether a period of three years has elapsed from the date of that order;

(c)

whether the fees for the application has been deposited at the rates specified in rule 12; and

(d)

whether security, wherever, necessary, has been deposited by the applicant at the rates specified in sub-rule (1) of rule 10.

9.

Refusal to the issue license.-

(1)

On receipt of the application from the contractor, and as soon as possible thereafter, the licensing officer shall investigate or cause investigation to be made to satisfy himself about the correctness of the facts and particulars furnished in such application and the eligibility of the applicant for a license.

(2)

(i)

Where the licensing officer is of the opinion that the license should not be issued, he shall, after affording reasonable opportunity to the applicant to be heard, make an order rejecting the application.

(ii)

The order shall record the reasons for the refusal and shall be communicated to the applicant.

10.

Security.-

[(1) Where the licensing officer is satisfied that any person who has applied for or who has been issued a license should furnish security for the due performance of the conditions of the license, he shall prepare an estimate of all the amount needed to provide for recruitment or employment of migrant workmen on the basis of the following factors, namely:-

(i)

Wages equivalent to one wage period payable under clause (v) of sub-rule (2) of rule 11, read with rule 25.

(ii)

Provision of medical facilities under rule 37,

(iii)

Provision of protective clothing under rule 38, wherever applicable,

(iv)

Provision of drinking water, latrines, urinals and washing facilities under rule 39, read with rules 42 and 43,

(v)

Provision of rests rooms under rule 40, wherever applicable,

(vi)

Provision of canteens under rule 41, wherever applicable ,

(vii)

Provision of creche under rule 44, wherever applicable,

(viii)

Provision of residential accommodation under rule 45,

(ix)

Journey allowance under section 15,

(x)

Number of migrant workmen employed or recruited, and

(xi)

Duration of work.]

(2)

The licensing officer shall determine the amount of the security to be furnished by such person, after considering the solvency of such a person, not exceeding 40 per cent. of the amount estimated by him in accordance with sub-rule (1) above.

(3)

□

[Renumbered by G.S.R. 316(E), dated 25.2.1986 (w.e.f. 25.2.1986).]

Where the applicant for license was holding a license in regard to another work and that license had expired, the licensing officer, if he is of the view that any amount out of the security, if any, deposited in respect of that license is to be refunded to the applicant under rule 17, he may on an application made for that purpose in Form VII by the applicant adjust the amount so to be refunded towards the security, if any, required to be deposited in respect of the application for the new license and the applicant need deposit, in such a case, only the balance amount, if any, after making such adjustment.

11.

Forms and terms and conditions of license.-

(1)

Every license issued under sub-section (1) of section 8 shall be in Form VIII.

(2)

Every license granted under sub-rule (1) or renewed under rule 15 shall be subject to the following conditions, namely:-

(i)

the license shall be non-transferable;

(ii)

the terms and conditions of the agreement or arrangement or the arrangement under which the migrant workmen is recruited or employed;

(iii)

the number of migrant workmen recruited or employed;

(iv)

the number of workmen recruited or employed as migrant workmen in the establishment shall not, on any day, exceed the maximum number specified in conditions (iii);

(v)

the rates of wages payable to the migrant workmen by the contractor shall not be less than the rates prescribed under

the Minimum Wages Act, 1948, for such employment and where the rates have been fixed by agreement, settlement or award, not less than the rates so fixed;

(vi)

save as provided in these rules the fees paid for the issue, or as the case may be, for renewal of license shall be non-refundable;

(vii)

(a)

in cases where the migrant workmen recruited or employed by the contractor perform the same or similar kind of work as the workmen directly employed by the principal employer of the establishment, the wage rates, holidays, hours of work and other conditions of service of the migrant workmen of the contractor shall be the same as applicable to the workmen directly employed by the principal employer of the establishment on the same or similar kind of work:

Provided that in the case of any disagreement with regard to the type of work, the same shall be decided by the Deputy Chief Labour Commissioner (Central) [* * *]

[Omitted by G.S.R. 316(E), dated 25.2.1986 (w.e.f. 25.2.1986).]

;

(b)

in other cases, the wage rates, holidays, hours of work and conditions of service of the migrant workmen recruited or employed by the contractor shall be such as prescribed in these rules;

(viii)

every migrant workman shall be entitled to allowances, benefits, facilities, etc., as prescribed in the Act and the rules;

(ix)

no female migrant workman shall be employed by any contractor before 6 a.m. or after 7 p.m.:

Provided that this clauses shall not apply to the employment of female migrant workmen in Pit head Baths, Creches and canteens and Midwives and Nurses in hospitals and dispensaries;

(x)

the contractor shall notify any change in the number of migrant workmen or the conditions of work to the licensing officer;

(xi)

the contractor shall comply with all the provisions of the Act and the rules;

(xii)

a copy of the license shall be displayed prominently at the premises where the migrant workmen are employed;

(xiii)

the period for which the license shall be valid;

(xiv)

[any change in the number of migrant workmen shall be notified to the licensing officer within seven days of this change.]

[Inserted by G.S.R. 932(E), dated 25.11.1987.]

12.

[Fees.-(

1.

) The fees to be paid for the grant of certificate of registration of an establishment under section 7, shall be as specified below:-

If the number of migrant workmen proposed to be employed in the establishments on any day.

(a)

is 5 and not exceeding 20

.

.

.

Rs 60

(b)

exceeding 20 and upto 50

.
. .
.

Rs. 150

(c)

exceeding 50 and upto 100

.
. .
.

Rs. 300

(d)

exceeding 100 and upto 200

.
. .
.

Rs. 600

(e)

exceeding 200 and upto 400

.
. .
.

Rs. 1,200

(f)

exceeding 400

.
. .
.

Rs. 1,500

(2)

The fees to be paid for grant of license under section 7 shall be as specified below :-

If the number of workmen employed by the contractor on any day-

(a)

is 5 and not exceeding 20

.
. .
.

Rs 15

(b)

exceeding 20 and upto 50

.
. .
.

Rs. 40

(c)

exceeding 50 and upto 100

.
. .
.

Rs. 80

(d)

exceeding 100 and upto 200

.
.
.
Rs. 150
(e)
exceeding 200 and upto 400

.
.
.
Rs. 300
(f)
exceeding 400

.
.
.
Rs. 400

]
[Substituted by G.S.R. 316(E), dated 25.2.1986 (w.e.f. 25.2.1986).]

13.
Amendment of the license.-

(1)
A license issued under rule 11 or renewed under rule 15 may, for good and sufficient reasons be amended by the licensing officer.

(2)
The contractor who desires to have the license amended shall submit to the licensing officer an application stating the nature of amendment and reasons therefor.

(3)
(i)
If the licensing officer allows the application he shall require the applicant to furnish a crossed demand draft for the amount, if any, by which the fees that would have been payable if the license had been originally issued in the amended form exceeds the fee originally paid for the license;

(ii)
on the applicant furnishing the requisite receipt, the license shall be amended according to the orders of the licensing officer.

(4)
Where the application for amendment is refused, the licensing officer shall record the reasons for such refusal and communicate the same to the applicant.

14. Renewal of license.-

(1)
Every contractor may apply to the licensing officer for renewal of the license.

(2)
The application shall be in Form IX in triplicate and shall be made not less than thirty days before the date on which the license expires, and if the application is so made the license shall be deemed to have been renewed until such date when the renewed license is issued.

(3)
The fees chargeable for renewal of the license shall be same as for the grant thereof:
Provided that if the application for renewal is not received within the time specified in sub-rule (2), a fee of twenty-five per cent. in excess of the fee ordinarily payable for the license shall be payable for such renewal:
Provided further that in case where the licensing officer is satisfied that the delay in submission of the application is due to unavoidable circumstances beyond the control of the contractor, he may reduce or remit as he deems fit the payment of such excess fee.

15.

Period of renewal of the license.-

Every license renewed under this rule 15 shall remain in force for a further period of twelve months from the date of the order of renewal.

16.

Issue of duplicate certificate of registration or license.-

Where a certificate of registration or license granted or renewed under the preceding rules has been lost, defaced or accidentally destroyed, a duplicate thereof may be granted on payment of fees of [Rs. 20.00]

[Substituted by G.S.R. 514 dated 29.6.1989.]

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17.

Refund of security.-

(1)

(i)

On expiry of the period of license the contractor may, if he does not intend to have his license renewed or get the security amount adjusted in respect of his fresh application for license in terms of sub-rule (2) of rule 10, make an application to the licensing officer for the refund of the security, if any, deposited by him under rule 10.

(ii)

If the licensing officer is satisfied that there is no breach of the conditions of license or there is no order under section 10 for the forfeiture of security or any portion thereof, he shall direct the refund of the security to the applicant.

(2)

If there is any order directing the forfeiture of the whole or any part of the security, the amount to be forfeited shall be deducted from the security deposit, and balance, if any, shall be refunded to the applicant.

(3)

The application for refund shall as far as possible, be disposed of within sixty days of the receipt of the application.

18.

Appeals and procedure.-

(1)

(i)

Every appeal under section 11 shall be preferred in the form of a memorandum signed by the applicant or his authorised agent and presented to the appellate officer in person or sent to him by registered post.

(ii)

The memorandum shall be accompanied by a certified copy of the order and a crossed demand draft for Rs. 25.

(2)

The memorandum shall set forth precisely and under distinct heads the grounds of appeal to the order appealed from.

(3)

Where the memorandum of appeal does not comply with the provision of sub-rule (2) it may be rejected or returned to the appellant for the purpose of being amended within a time to be fixed by the appellate officer.

(4)

Where the appellate officer rejects the memorandum of appeal under sub-rule (3), he shall record the reasons for such rejection and communicate the same to the appellant.

(5)

Where the memorandum of appeal is in order, the appellate officer shall admit the appeal, endorse thereon the date of presentation and shall register the appeal in the register of appeals kept for the purpose.

(6)

(i)

When the appeal has been admitted, the appellate officer shall send a notice to the registering officer or the licensing officer, as the case may be, from whose order the appeal has been preferred. The registering officer or as the case may be, the licensing officer shall thereupon send the record of the case to the appellate officer.

(ii)

On receipt of the record the appellate officer shall send a notice to the appellant to appear before him on such date and

time as may be specified in the notice for the hearing of the appeal.

(7)

If on the date fixed for the hearing, the appellant does not appear, the appellate officer may dismiss the appeal for default of appearance of the appellant.

(8)

(i)

Where an appeal has been dismissed under sub-rule (7), the appellant may apply to the appellate officer for re-admission of the appeal, and where it is proved that he was prevented by any sufficient cause from appearing when appeal was called on for hearing, the appellate officer shall restore the appeal on its original number.

(ii)

An application under clause (i) shall, unless the appellate officer extend the time for sufficient reason, be made within thirty days of the date of dismissal.

(9)

(i)

If the appellant is present when the appeal is called on for hearing, the appellate officer shall proceed to hear the appellant or his authorised agent and any other person summoned by him for the purpose, and pronounce judgment on the appeal either confirming, reversing or modifying the order appealed from.

(ii)

The judgement of the appellate officer shall state the points for determination, decisions thereon the reasons for the decisions.

(iii)

The order shall be communicated to the appellant and a copy thereof shall be sent to the registering officer or the licensing officer, as the case may be, from whose order the appeal has been preferred.

19.

Obtaining of copies of orders.-

A copy of the order of the registering officer, licensing officer or appellate officer may be obtained on payment of fees of [Rs. 500]

[Substituted by G.S.R. 514 dated 29.6.1989.]

per copy of each order on application specifying the date and other particulars of the order, made to the officer concerned.

20.

Payment of fees and security deposits.-

(1)

The payment of the various fees relating to registration, licensing and security deposits shall be made through a crossed Demand Draft drawn in favour of the concerned departmental officer and payable at the station at which he is stationed along-with a Treasury Challan duly filled in indicating the relevant head of account creditable to the accounts of the concerned Pay and Accounts Office.

(2)

The heads of accounts under which the receipt relating to the fees for registration, licensing and appeals, etc., shall be credited will be "B-Non-Tax Revenue-087 Labour and Employment-Receipts under the Inter-State Migrant Workmen (Regulations and Conditions of Service) Central Rules, 1980". The Security Deposits are to be booked under the head "Deposits Advances-(b) Deposits not bearing interest-843-Civil Deposits-Security Deposits".

Chapter III

Duties Of The Contractor

21.

Particulars of migrant workman.-

(1)

Every contractor shall furnish to the specified authorities the particulars regarding recruitment and employment of migrant workmen in Form X.

(2)

The particulars shall be either personally delivered by the contractor to the concerned specified authorities or sent to

them by registered post.

22.

Return fare.-

The contractor shall pay to the migrant workman the return fare from the place of employment to the place of residence in the home-state of the migrant workman on the expiry of the period of employment and also on his-

(a) termination of service before the expiry of the period of employment for any reason whatsoever;

(b) being incapacitated for further employments on accounts of injury or continued ill-health duly certified as such by a registered medical practitioner;

(c) cessation of work in the establishments which is not due to any fault on the part of the migrant workman; and

(d) resignation from service on account of non-fulfilment of terms and conditions of his employment by the contractor.

23.

Pass Book.-

(1)

In the pass book referred to in clause (4) sub-section (1) of section 12, the following additional particulars shall be indicated, namely:-

(a) the date of recruitment;

(b) the date of employment;

(c) total attendance/unit of work done (in respect of piece-rated migrant workman)/total wages earned/deductions, if any made/net amount paid the signature of contractor or his duly authorised representative with date; and (These entries shall be made separately in respect of each wage period within three days from the date of payment.)

(d) name and address of the next of kinds of migrant workman.

(2)

In case of fatal accident of serious bodily injury to any migrant workman, the contractor shall immediately send telegrams to the specified authorities of both the States and also the next of the kins of the migrant workman intimating death or the nature of serious bodily injury sustained by the migrant workman, as the case may be, date, place and nature of accident. The contractor shall further send written report to the specified authorities concerned and the next of the kin of the migrant workman, undermentioned particulars by registered post within 24 hours of the occurrence of the accident:-

(i) Name of the migrant workman;

(ii) Date, place and nature of accident;

(iii) Condition of the migrant workman (if alive);

(iv) Action taken by the contractor/principal employer;

(v) Remarks.

(3)

If the contractor fails to send the telegraphic intimation and/or written report as required under sub-rule (2), the principal employer shall comply with the requirements of sub-rule (2) as early as possible but in any case not later than 48 hours of the time of occurrence of the accident.

24.

Return and Report.-

Every contractor shall furnish a return regarding migrant workman who have ceased to be employed in Form XI to the specified authorities concerned either personally or by registered post so as to reach them to not later than 15 days from the date of migrant workman ceases to be employed.

Chapter IV

Wages

25.

Rate of wages.-

The rate of wages of a migrant workman in an establishment where he is required to work which is neither same nor of similar kind as is being performed by any other workman in that establishment shall not be less than the rate of wages paid by the principal employer to a workman in the lowest category of workman directly employed by him in that establishment or the minimum rates of wages notified by the Central Government under the Minimum Wages Act, 1948 for the same or similar type of work performed by workmen in any scheduled employment in the area in which the establishment is located, or the rates of wages payable to the workman for performing same or similar kind of work in that establishment in the State in which the establishment is located, whichever is higher:

Provided that if there is any dispute in this regard or with regard to applicability of wage rate to a migrant workman under sub-clause (b) of sub-section (1) of section 13, the same shall be decided by the Deputy Chief Labour Commissioner (Central) [* * *]

[Omitted by G.S.R. 316(E), dated 25.2.1986 (w.e.f. 25.2.1986).]

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26.

Wage-period.-

The contractor shall fix wage periods in respect of which wages shall be payable.

27.

No wage period shall exceed one month.

28.

Payment of wages.-

The wages of every migrant workman in an establishment by a contractor where less than 1000 workmen are employed shall be paid before the expiry of the seventh day and in other cases before the expiry of tenth day every month.

29.

Payment on termination.-

Where the employment of any migrant workman is terminated by or on behalf of the contractor, the wages earned by the migrant workman shall be paid before the expiry of the second working day from the day on which his employment is terminated.

30.

Mode of payment.-

All payments of wages shall be made by the contractor on working day at the work premises and during the working time and on a date notified in advance and in case the work is completed before the expiry of final payments, shall be made within forty-eight hours of the last working day.

31.

Wages due to every migrant workman shall be paid to him direct or to other persons duly authorised by him in this behalf.

32.

All wages shall be paid in current coin or in currency or in both. Wages shall be paid without any deduction of any kind except those specified by the Central Government by general or special order in this behalf or permissible under the Payment of Wages Act, 1936.

33.

A notice showing the wages period and the place and time of disbursement of wages shall be displayed at the place of work and a copy sent by the Contractor to the principal employer under acknowledgment.

34.

The principal employer shall ensure the presence of his authorised representative at the place and time of disbursement

of wages by the contractor to the migrant workman; and it shall be the duty of the contractor to ensure the disbursement of wages in the presence of such authorised representative.

35.

The authorised representative of the principal employer shall record under his signature a certificate at the end of all the entries in the register of wages or the wages-cum-muster roll, as the case may, be in the following form:-

"Certified that the amount shown in column No. has been made to the migrant workman concerned in my presence on....."

Chapter V

Medical And Other Facilities To Be Provided To Migrant Workman

36.

Holidays, hours of work and other conditions of service.

(1)

Holidays, hours of work including extra wages for overtime work done and other conditions of service of migrant workman shall not be less favourable than those obtaining in that establishment or in similar employment in the area in which the establishment is located, as the case may be.

(2)

Where there is any dispute in this regard or with regard to applicability of holidays hours of work including extra wages for overtime work done and other conditions of service to a migrant workman under clause (a) of sub-section (1) of section 13, the same shall be decided by the Deputy Chief Labour Commissioner (Central) [* * *]

[Omitted by G.S.R. 316(E), dated 25.2.1986 (w.e.f. 25.2.1986).]

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37.

Medical facilities.-

(1)

The contractor shall ensure provision of suitable and adequate medical facilities for outdoor treatment to the migrant workman free of cost for treatment of any ailment from which the migrant workman or any member of his family may suffer during his employment in the establishment or to meet any preventive measure against epidemic or any virus infection. Whenever any medicine is purchased by a migrant workman from market on the basis of the prescription issued by any Doctor provided by the contractor or the principal employer, as the case may be, or any registered medical practitioner, the cost of such medicine [including the fee upto Rs. 10 per consultation]

[Inserted by G.S.R. 22(E), dated 14.1.1991 (w.e.f. 14.1.1991).]

, shall be reimbursed by the contractor to the migrant workman concerned within a period of seven days from the date of presentation of the bill by the migrant workman.

(2)

In the event of migrant workman or any of his family members, suffering from any ailment requiring hospitalisation during his employment in the establishment, the contractor shall promptly arrange for the hospitalisation of the migrant workman or the concerned member of his family. The contractor shall bear entire expenses on treatment, hospital charges (including diet), if any, and travel expenses for the patient from the place of his/her residence to the hospital and back.

(3)

Every contractor shall provide and maintain so as to be readily accessible during all working hours first-aid boxes at the rate of not less than one box for one hundred and fifty workmen or part thereof.

(4)

The first-aid box shall be distinctly marked with a Red Cross on a white ground and shall contain the following equipment, namely:-

(a)

for the establishments in which number of migrant workmen employed does not exceed fifty, each first-aid box shall contain the following equipment:-

(i)

6 small sterilized dressings;

(ii)

3 medium size sterilized dressings;

(iii)

3 large size sterilized dressings;

(iv)

3 large sterilized burn dressings;

(v)

1 (30 ml.) bottle containing a two per cent alcoholic solution of iodine;

(vi)

1 (30 ml.) bottle containing salvolatile having the dose and mode of administration indicated on the label;

(vii)

1 snake-bite lancet;

(viii)

1 (30 gms.) bottle of Potassium permanganate crystals;

(ix)

1 pair scissors;

(x)

1 copy of the first-aid leaflet issued by the Director-General, Factory Advice Service and Labour Institute Government of India;

(xi)

A bottle containing 100 tablets (each of 5 grains) of aspirin;

(xii)

Ointment for burns; and

(xiii)

A bottle of suitable surgical antiseptic solution.

(b)

For establishments in which the number of migrant workmen exceed fifty each first-aid box shall contain the following equipment:-

(i)

12 small sterilized dressings;

(ii)

6 medium size sterilized dressings;

(iii)

6 large size sterilized dressings;

(iv)

6 large sterilized burn dressings;

(v)

6 (15 gms.) packets sterilized cotton wool;

(vi)

1 (80 ml.) bottle containing a two per cent alcoholic solution of iodine;

(vii)

1 (60 ml.) bottle containing salvolatile having the dose and mode of administration indicated on the label;

(viii)

1 roll of adhesive plaster;

(ix)

1 snake-bite lancet;

(x)

1 (30 gms.) bottle of potassium permanganate crystals;

(xi)

1 pair scissors;

(xii)

1 copy of the first-aid leaflet issued by the Director-General, Factory Advice Service and Labour Institute, Government of

India;

(xiii)

A bottle containing 100 tablets (each of 5 grains) of aspirin;

(xiv)

Ointment for burns; and

(xv)

A bottle of a suitable surgical antiseptic solution.

(5)

Adequate arrangements shall be made for immediate recoupment when necessary.

(6)

Nothing except the contents mentioned in sub-rule (4) shall be kept in the first-aid box.

(7)

The first-aid box shall be in charge of a responsible person who shall always be readily available during the working hours of the establishment.

(8)

The person-in-charge of the first-aid box shall be a person trained in first-aid treatment, in establishments where the number of migrant workmen is one hundred and fifty or more.

38.

Protective clothing.-

(1)

The contractor shall provide to every migrant workman where the temperature falls below 20 degree centigrade, protective clothing consisting of one woollen coat and one woollen trousers once in two years:

Provided that where the temperature falls below 5 degree centigrade an woollen overcoat shall also be provided to the migrant workman once in three years.

(2)

The protective clothing shall be provided by the contractor to every migrant workman before onset of winter season in the area where the establishment is located or on the 30th day of September, whichever is earlier.

39.

Drinking water, latrines, urinals and washing facilities.-

(1)

The contractor shall provide sufficient quantity of wholesome drinking water, sufficient number of sanitary latrines and urinals, washing facilities for the migrant workmen at the establishment in the case of existing establishments, within seven days of commencement of these rules, and in case of new establishment, within seven days of the commencement of employment of migrant workmen therein.

(2)

If any of the facilities is not provided by the contractor within the specified period, the same shall be provided by the principal employer within seven days of the expiry of the period specified in sub-rule (1).

40.

Rest rooms.-

(1)

In every place where migrant workmen are required to halt at night in connection with the working of the establishment and in which employment of migrant workmen is likely to continue for three months or more, the contractor shall provide and maintain rest rooms or other suitable alternatives accommodation within fifteen days of the coming into force of the rules in case of the existing establishments and within fifteen days of the commencement of the employment of migrant workmen in the case of new establishments.

(2)

If the amenity is not provided by the contractor within the specified period, the principal employer shall provide the same within a period of fifteen days of the expiry of the period specified in sub-rule (1).

(3)

Separate rooms shall be provided for female migrant workmen.

(4)

Effective and suitable provisions shall be made in every room for securing and maintaining adequate ventilation by circulation of fresh air, and there shall also be provided and maintained sufficient and suitable natural and artificial lighting.

(5)

The rest rooms, or other suitable alternative accommodation shall be of such dimensions so as to provide at least a floor area of 1.1 square meter for each person.

(6)

The rest room/rooms or other suitable alternative accommodation shall be so constructed as to afford adequate protection against heat, wind, rain and shall have smooth, hard and impervious floor surface.

(7)

The rest rooms or other suitable accommodation shall be at a convenient distance from the establishment and shall have adequate supply of wholesome drinking water.

41.

Canteens.-

(1)

In every establishment wherein work regarding the employment of migrant workmen is likely to continue for six months and wherein migrant workmen numbering one hundred or more are ordinarily employed an adequate canteen shall be provided by the contractor for the use of such migrant workmen within sixty days of the date of coming into force of the rules in the case of the existing establishments, and within sixty days of the commencement of the employment of migrant workmen in the case of new establishments.

(2)

If the contractor fails to provide canteen within the time laid down, the same shall be provided by the principal employer, within sixty days of the expiry of the time allowed to the contractor.

(3)

The canteen shall be maintained by the contractor or principal employer, as the case may be, in an efficient manner.

(4)

The canteen shall consist of at least a dinning-hall, kitchen, store-room, pantry and washing places separately for migrant workmen and for utensils.

(5)

(i)

The canteen shall be sufficiently lighted at all times when any person has access to it.

(ii)

The floor shall be made of smooth and impervious material and inside walls shall be lime-washed or colour-washed at least once in each year:

Provided that the inside walls of the kitchen shall be lime-washed every four months.

(6)

(i)

The precincts of the canteen shall be maintained in a clean and sanitary condition.

(ii)

Waste water shall be carried away in suitable covered drains and shall not be allowed to accumulate so as to cause a nuisance.

(iii)

Suitable arrangements shall be made for the collection and disposal of garbage.

(7)

The dinning-hall shall accommodate at a time at least 30 per cent. of the migrant workmen working at a time.

(8)

The floor area of the dinning-hall, excluding the area occupied by the service counter and any furniture except tables and chairs shall not be less than one square metre per dinner to be accommodated as specified in sub-rule (7).

(9)

(i)

A portion of the dinning hall and service counter shall be partitioned off and reserved for women migrant workmen in

proportion to their number.

(ii)

Washing places for women shall be separate and screened to secure privacy.

(10)

Sufficient tables, stools, chairs or benches shall be available for the dinners to be accommodated as specified in sub-rule (7).

(11)

(i)

There shall be provided and maintained sufficient utensils, crockery, cutlery, furniture and any other equipment necessary for the efficient running of the canteen.

(ii)

The furniture, utensils and other equipment shall be maintained in a clean and hygienic condition.

(12)

(i)

Suitable clean clothes for the employees, serving in the canteen shall be provided and maintained.

(ii)

A service counter, if provided, shall have top of smooth and impervious material.

(iii)

Suitable facilities including an adequate supply of hot water shall be provided for the cleaning of utensils and equipment.

(13)

The foodstuffs and other items to be served in the canteen shall be in conformity with the normal habits of the migrant workmen.

(14)

The charges for meals, other foodstuffs, beverages and other items served in the canteen shall be based on no-profit, no-loss basis and shall be conspicuously displayed in the canteen.

(15)

In arriving at the prices of foodstuffs and other articles served in the canteen the following items shall not be taken into consideration as expenditure, namely:-

(a)

The rent for the land and buildings;

(b)

The depreciation and maintenance charges for the building and equipment provided for in the canteen;

(c)

The cost of purchase, repairs and replacement of equipments including furniture, crockery, cutlery and utensils;

(d)

The water charges and other charges incurred for lighting and ventilation;

(e)

The interest on the amounts spent on the provision and maintenance of furniture and equipment provided for in the canteen.

(16)

The books of accounts and registers and other documents used in connection with the running of the canteen shall be produced on demand to an Inspector.

(17)

The accounts pertaining to the canteen shall be audited once every twelve months by registered accountants and auditors:

Provided that the Deputy Chief Labour Commissioner (Central) may approve of any other person to audit the accounts, if he is satisfied that it is not feasible to appoint a registered accountant and auditor in view of the site or the location of the canteen.

42.

Latrines and urinals.-

(1)

Latrines shall be provided in every establishment on the following scale, namely:-

(a)

Where females are employed, there shall be at least one latrine for every 25 females;

(b)

Where males are employed, there shall be at least one latrine for every 25 males:

Provided that where the number of males or females exceeds 190, it shall be sufficient if there is one latrine for 25 males or females, as the case may be, upto the first 100, and one for every 30 thereafter.

(2)

Every latrine shall be under cover and so partitioned off as to secure privacy, and shall have a proper door and fastenings.

(3)

(i)

Where workers of both sexes are employed there shall be displayed outside each block of latrine and urinal a notice in the language understood by the majority of the workers "For Men only", or "For Women only", as the case may be.

(ii)

The notice shall also bear the figure of a man or of a woman, as the case may be.

(4)

There shall be at least one urinal for male workers upto fifty and one for female upto fifty employed at a time:

Provided that where the number of male or female workmen, as the case may be, exceeds 500 it shall be sufficient if there is one urinal for every fifty females upto the first 500 and one for every 100 or part thereof thereafter.

(5)

The latrines and urinals shall be conveniently situated and accessible to workers at all times at the establishment.

(6)

(i)

The latrines and urinals shall be adequately lighted and shall be maintained in a clean and sanitary condition at all times.

(ii)

Latrines and urinals other than those connected with a flush sewage system shall comply with the requirements of the public health authorities.

(7)

Water shall be provided by the means of tap or otherwise so as to be conveniently accessible in or near the latrines and urinals.

43.

Washing facilities.-

(1)

In every establishment adequate and suitable facilities for washing shall be provided and maintained for the use of migrant workmen employed therein.

(2)

Separate and adequate screening facilities shall be provided for the use of male and female migrant workmen.

(3)

Such facilities shall be conveniently accessible and shall be kept in clean and hygienic condition.

44.

Creche.-

(1)

In every establishment where 20 or more workmen are ordinarily employed as migrant workmen and in which employment of migrant workmen is likely to continue for three months or more, the contractor shall provide and maintain two rooms of reasonable dimensions for the use of their children under the age of six years, within fifteen days of the coming into force of the rules, in case of existing establishment, and within fifteen days of the commencement of the employment of not less than twenty women as migrant workmen in new establishments.

(2)

One of such rooms shall be used as playroom for the children and the other as bedroom for the children.

(3)

If the contractor fails to provide the creche within the time laid down, the same shall be provided by the principal employer within fifteen days of the expiry of the time allowed to the Contractor.

(4)

The contractor or the principal employer as the case may be, shall supply adequate number of toys and games in the play rooms and sufficient number of cots and beddings in the sleeping room.

(5)

The creche shall be so constructed as to afford adequate protection against heat, damp, wind, rain and shall have smooth, hard and impervious floor surface.

(6)

The creche shall be at a convenient distance from the establishment and shall have adequate supply of wholesome drinking water.

(7)

Effective and suitable provisions shall be made in every room of the creche for securing and maintaining adequate ventilation by circulation of fresh air and there shall also be provided and maintained sufficient and suitable natural or artificial lighting.

45.

Residential accommodation.-

(1)

The contractor shall provide to every migrant, workman,-

(i)

in case he is accompanied by any other member of his family a suitable barrack so as to accommodate one room having at least a floor area of 10 square metres, a verandah and adequate additional covered space for cooking food as well as one common sanitary latrine, one common bathroom for every three such quarters; and

(ii)

in case he is unaccompanied by any other member of his family a suitable barrack so as to accommodate not more than ten such migrant workmen, having at least a floor area of not less than 6.5 square metres for each such migrant workman making use of the barrack, a verandah and adequate additional covered space for cooking food as well as one common sanitary latrine and one common bathroom for every ten such migrant workmen; within fifteen days of coming into force of the rules in the case of the existing establishments and within fifteen days of the commencement of the employment of migrant workmen in new establishment.

(2)

Every quarter and the barrack shall be so constructed as to afford adequate ventilation, protection against heat, wind, rain and shall have smooth, hard and impervious floor surface.

(3)

The quarters or the barracks, as the case may be, shall be at a convenient distance from the establishment and shall have adequate supply of wholesome drinking water.

(4)

The area in which the quarters and/or barracks are located as well as the latrines and bathrooms provided therein shall be kept in a clean and sanitary condition at all times.

(5)

If the amenities referred to in sub-rule (1) are not provided by the contractor within the period prescribed, the principal employer shall provide the same within a period of fifteen days of the expiry of the period laid down in the said sub-rule.

(6)

If there is any dispute or disagreement regarding suitability or adequacy of provision of any of the amenities referred to in sub-rules (1) to (4) the same shall be decided by Deputy Chief Labour Commissioner Central [* * *]

[Omitted by G.S.R. 316(E), dated 25.2.1986 (w.e.f. 25.2.1986).]

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46.

Liability of the principal employer in certain cases.-

If any allowance required to be paid under section 14 or section 15 to a migrant workman employed in an establishment to which this Act applies is not paid by the contractor or if any facility specified in section 16 is not provided for the

benefit of such migrant workman, such allowance shall be paid, or, as the case may be, the facility shall be provided, by the principal employer within fifteen days of the expiry of the time allowed to the contractor under the rules excepts where otherwise provided for in the relevant rules:

Provided that in case of ailment requiring urgent medical attention or hospitalisation as the case may be, the principal employer shall provide the same immediately on the failure of the contractor to do so.

47.

Relaxation in certain cases.-

If the contractor or principal employer, as the case may be, has already provided any facility, relating to supply of wholesome drinking water or rest-rooms or latrines and urinals or washing, canteen or creche or first-aid as required under any Act applicable to the establishment and the same is adequate and also available for use for the migrant workmen, that facility shall be deemed to be provided for under these rules.

Chapter VI

Registers And Records-collection Of Statistics

48.

Registers of contractors.-

Every principal employer shall maintain in respect of each registered establishment a register of contractors in Form XII.

49.

Register of persons employed.-

Every principal employer and contractor shall maintain in respect of each establishment, where he employees migrant workmen a register in Form XIII.

50.

Service certificate.-

On termination of employment for any reason whatsoever, the contractor shall issue to the migrant workman, whose services have been terminated a service certificate in Form XIV.

51.

Displacement-cum-outward journey allowances sheet and return journey allowances register.-

[(1) Every contractor shall maintain displacement-cum-outward journey allowance sheet in Form XV and return journey allowance register in Form XVI.]

[Substituted by G.S.R. 932(E), dated 25.11.1987.]

(2)

Entries in the sheet and the register required to be maintained under sub-rule (1) shall be authenticated by the contractor or his duly authorised representative.

52.

Muster roll, wages register, deductions register and overtime register.-

(1)

In respect of establishments which are governed by the Payment of Wages Act, 1936 and the rules made thereunder or the Minimum Wages Act, 1948 and the rules made thereunder or, Contract Labour (Regulation and Abolition) Act, 1970 and the rules made thereunder, the following registers and records required to be maintained by the contractor as employer under those Acts and the rules shall be deemed to be registers and records to be maintained by the contractor under these rules:-

(a)

muster roll;

(b)

register of wages;

(c)

register of deductions;

(d)

register of fines;

(e)

register of overtime;

(f)

register of advances.

(2)

In respect of establishment not covered by any of the Acts or the rules referred to in sub-rule (1), the following provisions shall apply, namely:-

(a)

Every contractor shall maintain a Muster Roll Register and a Register of Wages in Forms XVII and XVIII respectively.

(b)

Signature or thumb-impression of every migrant workman on the register of wages shall be obtained and entries therein shall be authenticated by the signature of the contractor or his authorised representative and duly certified by the authorised representative of the principal employer as required by rule 35.

(c)

Register of deduction, register of fines and register of advances-register of deduction for damage or loss, register of fines and register of advances shall be maintained by every contractor in Forms XIX, XX and XXI respectively.

(d)

Every contractor shall maintain register of overtime in Form XXII.

(3)

Notwithstanding anything contained in these rules where a combined or alternative form is sought to be used for the contractor to avoid duplication of work for compliance with the provisions of any other Act or the rules framed thereunder or any other laws or regulations or in cases where mechanised pay-rolls are introduced for better administration, alternative suitable form or forms in lieu of any of the forms prescribed under these rules, may be used with the previous approval of the Deputy Chief Labour Commissioner (Central).

53.

Maintenance and preservation of registers.-

(1)

All registers and other records required to be maintained under the Act and rules, shall be maintained complete and up-to-date, and, unless otherwise provided for, shall be kept at an office of the nearest convenient building within the precincts of the work place or at a place, if any, specified by the Inspector on the specific request made by the contractor in this behalf.

(2)

All the registers shall be maintained legibly in English or Hindi.

(3)

All the registers and other records shall be preserved in original for a period of three calendar years from the date of last entry made therein.

(4)

All the registers, records and notices maintained under the Act or rules shall be produced on demand before the Inspector or Deputy Chief Labour Commissioner (Central) or any other authority under the Act or any person authorised in that behalf by the Central Government.

(5)

Where no deduction or fine has been imposed or no overtime has been worked during any wage period, a 'Nil' entry shall be made across the body of the register at the end of every wage period indicating also in precise terms the wage period to which the 'Nil' entry relates in the respective registers maintained in Forms XIX, XX and XXI, respectively.

54.

Display of an abstract of the Act and the rules.-

Every contractor shall display an abstract of the Act and the rules in English and Hindi and in language spoken by majority of migrant workmen in such form as may be approved by the Deputy Chief Labour Commissioner (Central).

55.

Notices.-

(1)

(i)

Notices showing the rates of wages, hours of work, wage periods, dates of payment of wages, names and addresses of the Inspectors having jurisdiction, and date of payment of unpaid wages, shall be displayed in English and in Hindi and

in the local language understood by the majority of the workers in conspicuous places at the establishment and the work-site by the principal employer or the contractor, as the case may be.

(ii)

The notices shall be correctly maintained in a clean and legible condition.

(2)

A copy of the notice shall be sent to the Inspector and whenever any changes occur, the same shall be communicated to him forthwith.

56.

Periodical returns.-

(1)

Every contractor shall send half yearly return in Form XXIII (in duplicate) so as to reach the licensing officer concerned not later than thirty days from the close of the half year.

Note.-Half year for the purpose of this rule means "a period of six months commencing from the 1st January and 1st July every year".

(2)

Every principal employer of a registered establishment shall send annually a return in Form XXIV (in duplicate) so as to reach the registering officer concerned not later than the 15th February following the end of the year to which it relates.

57.

(1)

The Deputy Chief Labour Commissioner (Central) or the Inspector or any other authority under the Act shall have powers to call for any information or statistics in relation to migrant workmen from any contractor or principal employer at any time by an order in writing.

(2)

Any person called upon to furnish the information under sub-rule (1) shall be legally bound to do so.

Chapter VII

Legal Aid To Migrant Workman

58.

Legal aid.-

On receipt of a written application from migrant workman or in the event of his death, from next of his kin for providing legal aid in relation to any proceedings before the Authority under section 15 of the Payment of Wages Act, 1936 or Authority under section 20 of the Minimum Wages Act, 1948 or appropriate Labour Court under section 33-C (2) of the Industrial Disputes Act, 1947 or Commissioner for Workmen's Compensation under the Workmen's Compensation Act, 1923, in which the migrant workman or his legal heir is a party, the specified authority concerned, if he is satisfied, may with the prior approval of the Deputy Chief Labour Commissioner (Central) engage an advocate to conduct the relevant proceedings on behalf of the migrant workman or his legal heir as the case may be and meet all legal expenses in this regard.

[Chapter VIII]

[Added by G.S.R. 316(E), dated 25.2.1986 (w.e.f. 25.2.1986).]

Appeal

59.

(1)

Any person aggrieved by an order made under proviso to clause (vii) of sub-rule (2) of rule 11, rule 25, sub-rule (2) of rule 36, and sub-rule (6) of rule 45, within 30 days from the date on which order is communicated to him, may prefer an appeal to the Chief Labour Commissioner (Central):

Provided that the Chief Labour Commissioner (Central) may entertain the appeal after the expiry of the period of 30 days, if he is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time.

(2)

On receipt of an appeal under sub-rule (1), the Chief Labour Commissioner (Central) shall after giving the appellant an opportunity of being heard, dispose of the appeal as expeditiously as possible.

Form I

[See rule 3(l)]

Application For Registration Of Establishments Employing Migrant Workmen

1. Name and location of the establishment.
2. Postal Address of the establishment.
3. Full name and address of the principal employer (furnish father's/husband's name in the case of individuals).
4. Names and addresses of the directors/particular partners (in case of companies and firms).
5. Full name and address of the Manager or person responsible for the supervision and control of the establishment.
6. Nature of work carried on in the establishment.
7. Particulars of contractors and migrant workmen.

(a)

Names and addresses of contractoRs.

(b)

Nature of work for which migrant workmen are to be recruited or are employed.

(c)

Maximum number of migrant workmen to be employed on any day through each contractor.

(d)

Establishment date and commencement of work under each contractor.

(e)

Estimated date of termination of employment of migrant workmen under each contractor.

8. Particulars of crossed demand draft.....(Name of the Bank, Amount, Number and Date)

I hereby declare that the particulars given above are true to the best of my knowledge and belief.

Principal Employer

Seal and Stamp Office of the Registering Officer

Date of receipt of application:

Form II

[See rule 4 (1)]

Certificate Of Registration

Date.....

Government Of India

Office of the Registering Officer

A certificate of registration containing the following particulars is hereby granted under clause (a) of sub-section (2) of section 4 of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979 and tile rules made thereunder to.....

1. Nature of work carried on in the establishment.
2. Names and addresses of the contractoRs.
3. Nature of work for which migrant workmen are to be employed or are employed.
4. Maximum number of migrant workmen to be employed on any day through each contractor.
5. Other particulars relevant to the employment of migrant workmen.

(i)

(ii)

.....

Signature of Registering Officer with Seal

Form III

[See rule (2)]

Register Of Establishment

Sl.

No.

Registration No. and date

Name and address of the establishment registered

Name of the Principal Employer and his address

Type of business, trade, industry, manufacture or occupation, which is carried on in the establishment

Maximum No. of migrant workmen directly employed on any day

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)

Particulars of Contractor and Inter-State migrant workmen

Name and address of contractor

Nature of work for which migrant workmen are to be recruited or are employed

Maximum No. of migrant workmen employed on any day through a contractor

Probable duration of employment of migrant workmen

Remarks

- (7)
- (8)
- (9)
- (10)
- (11)

Form IV

[See rule 7 (1)]

Application For License For Recruitment

1. Name and address of the contractor (including his father's/husband's name in case of individuals.)

2. Date of birth and age (in case of individuals).

3. Particulars of establishment where migrant workmen are to be employed:

(a)

Name and address of the establishment;

(b)

Type of business, trade, industry, manufacture or occupation, which is carried on in the establishment;

(c)

Number and date of certificate of registration of the establishment under the Act;

(d)

Name and address of the principal employer.

4. Particulars of migrant workmen:

(a)

Nature of work in which migrant workmen are employed or are to be employed in the establishment.

(b)

Duration of the proposed contract work (give particulars of proposed date of commencing and ending).

(c)

Name and address of the agent or manager of the contractor at the work-site.

(d)

Maximum number of migrant workmen proposed to be employed in the establishment on any date.

(e)

Names and addresses of the directors/partners (in case of companies and firms).

(f)

Name(s) and addresse(es) of the person(s) in-charge of and responsible to the company/firm, for the conduct of the business of the company/firm, as the case may be.

5. Whether the contractor was convicted of any offence within the preceding five years. If so, give details.

6. Whether there was any order against the contractor revoking or suspending licence or forfeiting security deposits in respect of an earlier contract. If so, the date of such order.

7. Whether the contractor has worked in any other establishment within the past five years. If so, drive details of the principal employer, establishment, and nature of work.

8. Whether a certificate by the principal employer in Form V is enclosed.

9. Amount of licence fee paid.....No. of crossed demand draft and date.

10. Amount of security deposit, if any.

Declaration

I hereby declare that the details given above are correct to the best of my knowledge and belief.

Place.....

Date.....

.....

Signature of the Applicant

(Contractor)

Note. - The application should be accompanied by a crossed demand draft showing the payment of the prescribed licence fee and security deposit, if any and a certificate in Form V from the Principal Employer.

(To be filled in the office of the Licensing Officer)

Date of receipt of the application with crossed demand draft for fees.

.....

Signature of the Licensing Officer

Form V

[See rule 7 (2)]

Application For License For Employment

1. Name and address of the contractor (including his father's/husband's name in case of individuals.)

2. Date of birth and age (in case of individuals)

3. Particulars of establishment where migrant workmen are to be employed:

(a)

Name and address of the establishment;

(b)

Type of business, trade, industry, manufacture or occupation, which is carried on in the establishment;

(c)

Number and date of certificate of registration of the establishment under the Act;

(d)

Name and address of the principal employer.

4. Particulars of migrant workmen:

(a)

Nature of work in which migrant workmen are employed or are to be employed in the establishment.

(b)

Duration of the proposed contract work (give particulars of proposed date of commencing and ending).

(c)

Name and address of the agent or manager of the contractor at the work-site.

(d)

Maximum number of migrant workmen proposed to be employed in tile establishment on any date.

(e)

Names and addresses of the Directors/Partners (in case of companies and firms).

(f)

Name(s) and addresse(es) of the person(s) in charge of and responsible to the company/firm for the conduct of the business of the company/firm, as the case may be.

5. Whether the contractor was convicted of any offence within the preceding five years. If so, give details.

6. Whether there was any order against the contractor revoking or suspending licence or forfeiting security deposits in respect of an earlier contract. If so, the date of such order.

7. Whether the contractor has worked in any other establishment within the past five yeaRs. If so, give details of the principal employer, establishment, and nature of work.

8. Whether a certificate by the principal employer in Form V is enclosed.

9. Amount of licence fee paid.....No. of crossed demand draft and date.

10. Amount of security deposit, if any.

Declaration

I hereby declare that the details given above are correct to the best of my know ledge and belief.

Place.....

Date.....

.....

Signature of the applicant

(Contractor)

Note. - The application should be accompanied by a crossed demand draft showing the payment of the prescribed fee and security deposit, if any and a certificate in Form VI from the principal employer.

(To be filled in the office of the Licensing Officer)

Date of receipt of the application with crossed demand draft for fees.

.....

Signature of the Licensing Officer

Form VI

[See rule 7(3)]

Form Of Certificate By Principal Employer

Certified that I have engaged the applicant (Name of the contractor) as a contractor in my establishment. I undertake to be bound by all the provisions of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979 and the Inter State Migrant Workmen (Regulation of Employment and Conditions of Service) Central Rules, 1980 in so far as the provisions are applicable to me in respect of the employment of migrant workmen by the applicant in my establishment.

Place.....

Date.....

.....

Signature of principal Employer

Name and address of establishment

Form VII

[See rule 10(2)]

Application For Adjustment Of Security Deposit

Name and address of the Contractor

Number and date of application for fresh license.

Date of expiry of previous license

Whether the previous license of the contractor was suspended or revoked

Number and date of crossed demand draft of security deposit in respect of the previous license

Amount of previous security deposit

1

2

3

4

5

6

Amount of security deposit for fresh license

Number and date of crossed demand draft of the balance security deposit deposited with the fresh application

Number and date of certificate of registration of the establishment in relation to which the fresh license is applied for

Name and address of the principal employer

Particulars of fresh application

Remarks

7

8

9

10

11

12

Place

Date

.....

Signature of applicant

Form VIII

[See rule 11(1)]

Government Of India

Office of licensing Officer

License No.....

Dated.....

Fee paid Rs.....

License

Licence is hereby granted to..... under section 8(l) of the Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979 subject to the conditions specified in the annexure.

2. This license is for doing the work of (nature of work to be indicated) in the establishment of (name of principal employer to be indicated) at (place of work to be indicated).

3. The licence shall remain in force till (date to be indicated).

.....

Signature and Seal of licensing Officer.

Renewal

(See rule 14)

Date of renewal

Fee paid for renewal

Date of expiry.

1.

2.

3.

Date.....

.....

Signature and Seal of licensing Officer.

Annexure

The licence is subject to the following, conditions: -

1. The licence shall be non-transferable.

2. The number of workmen employed as migrant workmen in the establishment shall not, on any day, exceed the maximum number specified in the application for licence.

3. Save as provided in these rules the fees paid for the grant or as the case may be, for renewal of licence shall be non-refundable.

4. The rates of wages payable to the migrant workmen by the contractor shall not be less than the rates prescribed under the Minimum Wages Act, 1948, for such employment where applicable, and where the rates have been fixed by agreement, settlement or award, not less than the rates so fixed.

5. (a) In case where the migrant workmen employed by the contractor perform the same or similar kind of work as the workmen directly employed by the principal employer of the establishment, the wage rates, holidays, hours of work and other conditions of service of the migrant workmen of the contractor shall be the same as applicable to the workmen directly employed by the principal employer of the establishment on the same or similar kind of work:

Provided that in the case of any disagreement with regard to the type of work, the same shall be decided by the Deputy Chief Labour Commissioner (Central) [***]

[Omitted by G.S.R. 316 (E), dated 25-2-1986 (w.e.f. 25-2-1986)]

;

(b)

In other cases the wage rates, holidays, hours of work, and conditions of service of the migrant workmen of the contractor shall be such as prescribed in these rules.

6. Every migrant workmen shall be entitled to allowances benefits, facilities, etc., as prescribed in the Act and these rules.

7. No female migrant workman shall be employed by any contractor before 6 a.m. or after 7 p.m.:

Provided that this clause shall not apply to the employment of female migrant workmen in pit head baths, creches and canteens and as midwives and nurses in hospitals and dispensaries.

8. The contractor shall notify any change in the number of migrant workmen or the conditions of work to the Licensing Officer.

9. The contractor shall comply with all the provisions of the Act and these Rules.

10. A copy of licence shall be displayed prominently at the premises where the migrant workmen are employed.

Form IX

[See rule 15(2)]

Application For Renewal Of License

1. Name and address of the contractor.

2. Number and date of the Licence.

3. Date of expiry of the previous licence.

4. Whether the licence of the Contractor was suspended or revoked.

5. Number and date of the crossed demand draft enclosed.

Place.....

Date.....

.....
Signature of the applicant

(To be filled in the Office of the licensing Officer)

Date of receipt of the application with crossed demand draft No. and date.

.....
Signature of the licensing Officer

Form X

(See rule 21)

Form In Which To Furnish Particulars In Respect Of Recruitment And Employment Of Migrant Workman/workman As Prescribed Under Sub-Rule (1) Of Rule 21, To The Authorities Specified Under The Explanation Below Sub-Section (2) Of Section 12 Of Inter-State Migrant Workmen (Regulation Of Employment And Conditions Of Service) Act, 1979.

1. Name and address of the contractor.....

2. Name and address of the sub-contractor through whom recruitment has been made.....

3. Name and address of the establishment.....

4. Name and address of the Principal Employer.....

5. Name of the State in which the place of work is located.....

6. Name of the State in which recruitment was made.....

Sl.

No.

Name of migrant workman.

Father's/Husband's Name

Sex

Age

Permanent home address

Name and address of the next of kind of the migrant workman

Place and address of residence in the home State

Amount of displacement allowance paid

Amount of outward journey allowance paid

Amount of wages for outward journey period paid

Nature of job, required to be performed

1

2

3

4

5

6

7

8

9

10

11

12

Date of recruitment

Date of employment

Details of rates of wages and other allowances payable

Period of contract of employment

Details of other service conditions

Remarks

13

14

15

16

17

18

.....
Signature of Contractor or his authorised representative

Date

Submitted to

(1)

.....
(Specified authority in the State from which the migrant workman/workmen is/are employed).

(2)

.....
(Specified authority in the State in which migrant workman/workmen has/have been recruited.)

Copy forwarded to

.....
(The Principal Employer)

.....
Signature of the Contractor or his authorised representative.

Date.....

Note. - In case where migrant workmen concerned have been recruited from more than one State, separate returns shall be submitted in respect of each such State.

Form XI

(See rule 24)

Return To Be Sent By The Contractor To The Authorities Specified Under Explanation Below Sub-Section (2) Of Section 12 Of Inter-State Migrant Workmen (Regulation Of Employment And Conditions Of Service) Act, 1979

1. Name and address of the Contractor.....

2. Name and address of the sub-contractor through

whom recruitment has been made.....

3. Name and address of the establishment.....

4. Name and address of the Principal Employer.....

5. Name of the State in which the place of work is located.....

6. Name of the State in which recruitment was made.....

Serial No.

Name of migrant workman

Father's/Husbands name

Sex

Designation

Age

Permanent home address indicating the State

Place and address of residence in home State

Date of employment

Date on which ceased to be employed

Total days worked

1

2

3

4

5

6

7

8

9

10

11

Details of rates of wages and other allowances paid.

Amount of displacement allowances paid.

Amount of outward journey allowances wages for outward journey paid.

Amount or return journey allowances and wages for return journey paid

Total wages paid.

Details of compensation and other allowances.

Amount of deductions, if any.

Amount of advance, if any paid.

Amount of advance, if any recovered.

Remarks

12

13

14

15

16

17

18

19

20

21

Declaration

I/We hereby declare that all wages, other dues including displacement allowance, outward return journeys allowances and wages for journeys period payable to migrant workman/workmen named above and employed by me/us have been paid by me/us to him/them.

Place.....

Date.....

.....

Signature of the Contractor or his authorised representative

Submitted to

(1)

.....

.....

(Specified authority in the State in which migrant workman/workmen is/are employed).

(2)

.....

.....

(Specified authority in the State in which migrant workman/workmen has/have been recruited.)

Copy forwarded to

.....

(The Principal Employer)

.....

Signature of the Contractor or his authorised representative.

Date.....

Note. - In case where migrant workmen concerned have been recruited from more than one State, separate returns shall be submitted in respect of each such State.

Form XII

(See rule 48)

Register Of Contractors

1. Name and address of the Principal Employer.....

2. Name and address of the establishment.....

Name and address of contractor

Nature of work on contract

Location of contract work

Period of contract

FromTo

Maximum No. of migrant workmen employed by contractor

Form XIII

(See rule 49)

Register Of Workmen Employed By Contractor

Name and address of the contractor.....

Name and address of the establishment.....

Name and address of establishment in/under which migrant workmen are employed.....

Name and address of principal employer.....

Sl.

No.

Name and surname of migrant workman

Age and sex

Father's/Husband's Name

Nature of employment/designation

Permanent home address of migrant workmen (Village and Tahsil/Talik and District)

Local address

Date of commencement of employment

Signature or thumb-impression of migrant workman

Date of termination of employment

Reasons for termination

Remarks

1
2
3
4
5
6
7
8
9
10
11
12

.....
Signature of Contractor or his authorised representative.

Form XIV

(See rule 50)

Service Certificate

Name and address of Contractor.....

Nature and location of work.....

Name and address of the migrant workman.....

Age or date of birth.....

Identification marks.....

Father's/Husband's name.....

Name and address of establishment in/under which
migrant workmen are employed.....

Name and address of principal employer.....

Sl.

No.

Total period for which employed

FromTo

Nature of work done

Rate of wages (with particulars of unit case of piece-work)

Remarks

(1)
(2)
(3)
(4)
(5)
(6)

.....
Signature of the Contractor or his authorised representative.

Form XV

[See rule 51(1)]

Displacement And Outward Journey Allowance Sheet

Name and address of the contractor.....

Name and address of the principal employer.....

Name and address of the establishment.....

Month and Year.....

SINo.

Name of the migrant workman

Father's/Husband's name
 Permanent home address indicating the State
 Place and address of residence in the home State
 Designation
 Rate of wages
 Wages payable in a month
 Place of recruitment
 Place of work with address indicating the State
 Railway Station/Bus Stand nearest to the place of residence
 Railway station/Bus Stand nearest to the place of work
 Date and time of commencement of journey from the place of residence

1
 2
 3
 4
 5
 6
 7
 8
 9
 10
 11
 12
 13

Expected date and time of arrival at the place of work.
 Details of modes of journeys from the place of residence in the home State to the place of work.
 Amount of bus fare and/or second-class train fare and/or other journey expenses separately as the modes of journey indicated in column 15
 Total of amount indicated in column No. (16)
 Amount of displacement allowance.
 Amount of outward journey allowance.
 Wages for outward journey period.
 Total amount paid.
 Date on which paid.
 Signature or thumb-impression of the migrant workman.
 Actual date and time of arrival at the place of work.
 Balance wages for outward journey, if any payable.
 Date of payment of the balance wages indicated in column (25)
 Signature of thumb-impression of the migrant workman.
 Remarks.

14
 15
 16
 17
 18
 19
 20
 21
 22
 23
 24

25
26
27
28

Note. - Indicate separately different mode of journeys. Entries are to be made against each individual migrant workman.

.....
Signature of the Contractor or his authorised representative.

Date.....

Form XVI

(See rule 51 (1)]

Return Journey Allowance Register

Name and address of the Contractor.....

Name and address of the Principal Employer.....

Name and address of the establishment.....

Month and Year.....

SI No.

Name of the migrant workman

Father's/Husband's name

Permanent home address indicating the State

Place and address of residence in home State

Designation

Rate of wages

Place of work

Railway Station/Bus Stand

Railway Station/Bus Stand nearest to the place of residence in the home State

Date and time of commencement of journey from the place of work

1
2
3
4
5
6
7
8
9
10
11

Expected date and time of arrival at the residence in the home State.

*Expected of modes of journeys from the place of work to place of residence in the home State.

Amount of bus fare and/or second-class train fare and/or other journey expenses separately as per expected modes of journey indicated in column (13)

Total of amount indicated in column No. (14)

Amount of return journey allowance

Wages for return journey period

Total amount paid.

Date on which paid.

Signature or thumb-impression of the migrant workman

Remarks

12
13
14

15
16
17
18
19
20
21

*Indicate separately different modes of journey.

Note. - Entries are to be made against each individual inter-State migrant workman.

.....

Signature of the Contractor or his authorised representative.

Date.....

Form XVII

[See rule 52 (2)(a)]

Muster Roll

Name and address of Contractor.....

Nature and location of work.....

Name and address of establishment in/under which inter-State migrant workmen are employed.....

Name and address of principal employer.....

For the month of.....

Sl. No.

Name of Migrant workman

Father's/Husbands name

Sex

Dates

12345

Remarks

1

2

3

4

5

6

Form XVIII

[See rule 52 (2)(a)]

Register Of Wages

Name and address of

Contractor.....

Nature and location of

work.....

Name and address of establishment in/under, which inter-State Migrant Workmen, are employed.....

Name and address of Principal

Employer.....

Wage

period.....

.....

Serial No.

Name of inter-State migrant workman

Serial No. in the register of workmen

Designation/nature of work

Number of days worked

Units of work done

1

2

3

4

5

6

Daily rate of wages/piece-rate

Amount of wages earned

Basic wages

Dearness allowance

Overtime

Other cash payments (nature of payment to be indicated)

Total.

7

8

9

10

11

12

Deductions, if any (indicate nature)

Net amount paid

Signature/Thumb-impression of Inter-State Migrant workman

Initials of Contractor or his authorised representative

13

14

15

16

Form XIX

[See rule 52 (2)(c)]

Register Of Deduction For Damage Or Loss

Name and address of

Contractor.....

Nature and location of

work.....

Name and address of establishment in/under which inter-State migrant workmen are employed.....

Name and address of principal employer.....

Sl. No.

Name of inter-state migrant workman.

Father's/Husband's name

Designation/nature of employment

Particulars of damage or loss

1

2

3

4

5

Date of damage or loss

Whether inter-state migrant workman showed cause against deduction

Name of person in whose presence employee's explanation was heard

Amount of deduction imposed

6

7

8

9

Number of installments

Date of recovery

First InstalmentLast instalment

Remarks

10

11

12

Form XX

[See rule 52 (2)(c)]

Register Of Fines

Name and address of

Contractor.....

.....

Nature and location of

work.....

.....

Name and address of establishment in/under which inter-State migrant workmen are employed.....

Name and address of principal

employer.....

Sl. No.

Name of inter-state migrant workman

Father's/Husband's name

Designation/Nature of employment

Act/Omission for which fine imposed

Date of offence

1

2

3

4

5

6

Whether inter-state migrant workman showed cause against fine

Name of person in whose presence employee's explanation was heard

Wages periods and wages payable

Amount of fine imposed

Date on which fine realised

Remarks

7

8

9

10

11

12

Form XXI

[See rule 52 (2)(c)]

Register Of Advances

Name and address of Contractor.....

Nature and location of work.....

Name and address of establishment in/under which inter-State migrant workmen are employed.....

Name and address of principal employer.....

Sl. No.

Name of inter-state migrant workman

Father's/Husband's name

Nature of Employment/Designation

Wage period and wages payable

Date and amount of advance given

1

2

3

4

5

6

Purpose(s) for which advance made

No. of installments by which advance to be repaid

Date and amount of each instalment repaid

Date on which last instalment was repaid

Remarks

7

8

9

10

11

Form XXII

[See rule 52(2)d)]

Register Of Overtime

Name and address of Contractor.....

Nature and location of work.....

Name and address of establishment in/under which inter-State migrant workmen are employed.....

Name and address of principal employer.....

Sl. No.

Name of inter-state migrant workman

Father's/Husband's name

Sex

Designation/nature of employment

Date on which overtime worked

1

2

3

4

5

6

Total overtime worked for production in case of piece-rated

Normal rates of wages

Overtime rate of wages

Overtime earnings

Date on which overtime wages paid

Remarks

7

8

9

10

11

12

Form XXIII

[See rule 45 (1)]

Return To Be Sent By The Contractor To The Licensing Officer

Half-Year Ending

1. Name and address of the Contractor.....

2. Name and address of the establishment.....

3. Name and address of the principal employer.....

4. Duration of contract: From..... To.....

5. Number of days during the half-year on which-

(a)

The establishment of the Principal Employer had worked.....

(b)

The contractor's establishment had worked.....

6. Maximum number of interstate migrant workmen employed on any day during the half-year :

Men

Women

Children

Total

7. (i) Daily hours of work and spread over:

(ii)

(a)

Whether weekly holiday observed and on what day

(b)

If so, whether it was paid for:

(iii)

Number of manhours of overtime worked :

8. Number of mandays worked by :

Men

Women

Children

Total

9. Amount of wages paid:

Men

Women

Children

Total

Note: Wages shall not include wages for periods of outward and return journeys.

10. Amount of deduction from wages if any :

11. Amount of displacement allowance paid :

Men

Women

Children

Total

12. Amount of outward journey allowance paid:

Men

Women

Children

Total

13. Amount of wages for outward journeys period paid

Men

Women

Children

Total

14. Amount of return journeys allowance paid:-

Men

Women

Children

Total

15. Amount of wages for return journeys period paid :

Men

Women

Children

Total

16. Whether the following have been provided :-

(i)

Residential accommodation;

(ii)

Protective clothing;

(iii)

Canteen;

(iv)

Rest room;

(v)

Latrine and urinals;

(vi)

Drinking water;

(vii)

Creche

(viii)

Medical Facilities;

(ix)

First aid.

(If the answer is "Yes", state briefly nature/standards provided)

Place.....

Date.....

.....

Signature of Contractor

Form XXIV

[See rule 56 (2)]

Annual Return Of Principal Employer To Be Sent To The Registering Officer

Year ending 31st December.....

1. Full name and address of the Principal Employer:

2. Name of establishment:

(a)

District:

(b)

Postal Address

(c)

Nature of operation/industry/work carried on

3. Full name of the Manager or persons responsible for supervision and control of the establishment.

4. Number of contractors who worked in the establishment during the year (Give details in Annexure).

5. Nature of work/operations on which migrant workman was employed.

6. Total number of days during the year on which migrant workman was employed.

7. Total number of mandays worked for by migrant workman during the year.

8. Maximum number of workmen employed directly on any day during the year.

9. Total number of days during the year on which direct labour was employed.

10. Total number of man-days worked by directly employed workmen.

11. Change, if any, in the management of the establishment, its location, or any other particulars furnished to the Registering Officer in the application for Registration indicating also the dates.

Place.....

Date.....

.....

Principal employer

Annexure To Form

Name and address of the contractor

Period of contract

FromTo

Nature of work

Maximum number of workers employed by each contractor

Number of days worked

Number of man days worked

1

2

3

4

5

6

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Translation